

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

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GEORGE GUILTY,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, and POLICE OFFICER
MOHAMMED CHOUDHURY, POLICE OFFICER
LUKE MCDONALD, SERGEANT OMAR
CASTILLO, and JOHN DOES 1-6 in their individual
and official capacities,

Defendants

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Index No.: _____

Purchased: _____

Plaintiff designates
Bronx County as the place of trial

The basis of the venue is the
Residence of Plaintiff

SUMMONS

Plaintiff resides at
765 East 163rd Street
Bronx, NY 10456

TO THE ABOVE NAMED DEFENDANT:

You ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
July 30, 2019



Bryan Barenbaum, Esq.
Law Offices of Bryan Barenbaum
Attorneys for Plaintiffs
2060 Eastern Parkway
Brooklyn, New York 11207
(718) 421-1111

Defendants' Addresses:

CITY OF NEW YORK
c/o CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
c/o CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER MOHAMMED CHOUDHURY

POLICE OFFICER LUKE MCDONALD

SERGEANT OMAR CASTILLO

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

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GEORGE GUITY,

Index No.**Plaintiff,****VERIFIED COMPLAINT****-against-**

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, and POLICE OFFICER
MOHAMMED CHOUDHURY, POLICE OFFICER
LUKE MCDONALD, SERGEANT OMAR
CASTILLO, and JOHN DOES 1-6 in their individual
and official capacities,

Defendants

-----X

GEORGE GUITY, by his attorneys, the **LAW OFFICES OF BRYAN BARENBAUM**, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff **GEORGE GUITY** was a resident of Bronx County, City and State of New York.
2. At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 24th day of January 2019, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendants **CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT**, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendants **CITY OF NEW**

YORK and NEW YORK CITY POLICE DEPARTMENT, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. On or about the 29th day of January 2019, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendants OMAR CASTILLO and MOHAMMED CHOUDHURY, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendants, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.
5. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
6. The Plaintiff has complied with the request of the municipal Defendants for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law in that Plaintiff's current location has been advised to Defendants and Plaintiff's Counsel has offered to make arrangements for the oral examination pursuant to Section 50-H to be conducted, but Defendants have not advised Plaintiff's Counsel as to their desire to conduct said oral examination.
7. Upon information and belief, at all times mentioned, Defendants CITY OF

NEW YORK, NEW YORK CITY POLICE DEPARTMENT, and POLICE OFFICER MOHAMMED CHOUDHURY, POLICE OFFICER LUKE MCDONALD, SERGEANT OMAR CASTILLO, and JOHN DOES 1-6 were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

9. Upon information and belief, on or about May 4, 2018, between approximately 3:20 A.M. and 4:05 A.M. in the vicinity of 49th Street and Astoria Boulevard, County of Queens, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, harmed, kicked, struck, handcuffed, searched and seized the Plaintiff **GEORGE GUILTY**, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, harm, kick, strike, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.
10. Upon information and belief, the other Officers, including Defendants **JOHN DOES 1-6**, willfully ignored and/or observed and failed to act to stop the beating.
11. Upon information and belief, the assault and beatings by the Defendants caused Plaintiff to sustain injuries requiring emergency medical treatment.
12. Upon information and belief, the conduct of the defendants, as described herein, amounted to excessive use of force.

13. Upon information and belief, such conduct also violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
14. Upon information and belief, consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

AS AND FOR A SECOND CAUSE OF ACTION

15. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "14" with full force and effect as though set forth at length herein.
16. Upon information and belief, on or about May 4, 2018, between approximately 3:20 A.M. and 4:05 A.M. in the vicinity of 49th Street and Astoria Boulevard, County of Queens, State of New York the Defendants, jointly and severally did place Plaintiff **GEORGE GUILTY** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike, kick and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.
17. Upon information and belief, the conduct of the defendants, as described herein, amounted to false arrest.
18. Upon information and belief, such conduct also violated plaintiff's rights

under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.

19. Upon information and belief, the conduct of the defendants, as described herein, amounted to false arrest.
20. Upon information and belief, such conduct also violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
21. Upon information and belief, consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

AS AND FOR A THIRD CAUSE OF ACTION

22. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "21" with full force and effect as though set forth at length herein.
23. Upon information and belief on or about May 4, 2018, between approximately 3:20 A.M. and 4:05 A.M. in the vicinity of 49th Street and Astoria Boulevard, County of Queens, State of New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody.
24. Upon information and belief, the Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise

privileged by law and, at all times, the Plaintiff was conscious of his confinement.

25. Upon information and belief, the conduct of the defendants, as described herein, amounted to false arrest.
26. Upon information and belief, such conduct also violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
27. Upon information and belief, consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

AS AND FOR A FOURTH CAUSE OF ACTION

28. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "27" with full force and effect as though set forth at length herein.
29. Upon information and belief, Plaintiff was then transported to Elmhurst Hospital Center where he received emergency medical care for the traumatic injuries he sustained.
30. Upon information and belief, while Plaintiff remained in Elmhurst Hospital Center the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, intentionally and wrongfully and unlawfully restrained and confined Plaintiff and his liberty and kept him in custody at Elmhurst Hospital Center. Plaintiff was conscious of his

confinement.

31. Upon information and belief, the conduct of the defendants, as described herein, amounted to false arrest.
32. Upon information and belief, such conduct also violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
33. Upon information and belief, the conduct of the defendants, as described herein, amounted to false arrest.
34. Upon information and belief, consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

AS AND FOR A FIFTH CAUSE OF ACTION

35. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "34" with full force and effect as though set forth at length herein.
36. Upon information and belief on or about May 4, 2018, between approximately 3:20 A.M. and 4:05 A.M. in the vicinity of 49th Street and Astoria Boulevard, County of Queens, State of New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of the Queens.

37. Upon information and belief, the Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.
38. Upon information and belief, the conduct of the defendants, as described herein, amounted to false arrest.
39. Upon information and belief, such conduct also violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
40. Upon information and belief, consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

AS AND FOR A SIXTH CAUSE OF ACTION

41. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "42" with full force and effect as though set forth at length herein.
42. Upon information and belief, on or about May 4, 2018, Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, and POLICE OFFICER MOHAMMED CHOUDHURY, POLICE OFFICER LUKE MCDONALD, SERGEANT OMAR CASTILLO, and JOHN DOES 1-6, deliberately and maliciously prosecuted Plaintiff **GEORGE GUILTY**, an innocent man without any probable cause whatsoever, by filing or causing a

criminal court complaint to be filed in the Criminal Court of the City of New York, Queens County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

43. Upon information and belief, the Defendants, jointly and severally, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff and due to the absence of probable cause malice can be inferred.
44. Upon information and belief, the commencement of these criminal proceedings under Case No. CR-016419-18QN was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
45. Upon information and belief, as a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.
46. Upon information and belief, the conduct of defendant officers, as described herein, amounted to malicious prosecution.
47. Upon information and belief, such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
48. Upon information and belief, consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be

proven at trial against each of the defendants, individually and severally.

AS AND FOR A SEVENTH CAUSE OF ACTION

49. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "48" with full force and effect as though set forth at length herein.
50. Upon information and belief, Plaintiff was then transported back to Jail and wrongfully, incarcerated for several months.
51. Upon information and belief, the Defendants, intentionally and jointly and severally without any warrant, order or other legal process and without any legal right, intentionally and wrongfully and unlawfully restrained and confined Plaintiff and his liberty and kept him in custody.
52. Upon information and belief, the Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.
53. Upon information and belief, the conduct of the defendants, as described herein, amounted to false arrest.
54. Upon information and belief, such conduct also violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
55. Upon information and belief, consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be

proven at trial against each of the defendants, individually and severally.

AS AND FOR AN EIGHTH CAUSE OF ACTION

56. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "55" as it set forth at length herein.
57. Upon information and belief, Defendants denied plaintiff his due process right to be free from continued detention after it was or should have been known that plaintiff was entitled to release.
58. Upon information and belief, the conduct of defendant officers, as described herein, amounted to unreasonable detention.
59. Upon information and belief, such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
60. Upon information and belief, consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

AS AND FOR AN NINTH CAUSE OF ACTION

61. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "60" as it set forth at length herein.
62. Upon information and belief, that each and every officer and/or individual

who responded to, had any involvement and/or was present at the location of the arrest, assault and/or incident described herein knew and was fully aware that plaintiff did not commit any crime or offense, and had a realistic opportunity to intervene to prevent the harm detailed above from occurring.

63. Upon information and belief, nonetheless, defendant officers did absolutely nothing to discourage and prevent the harm detailed above from occurring and failed to intervene.
64. Upon information and belief, such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
65. Upon information and belief, consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

AS AND FOR A TENTH CAUSE OF ACTION

66. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "65" as it set forth at length herein.
67. Upon information and belief, the conduct of defendant officers, as described herein, amounted to unlawful stop and frisk.
68. Upon information and belief, such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
69. Upon information and belief, consequently, plaintiff has been damaged and

hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

AS AND FOR AN ELEVENTH CAUSE OF ACTION

70. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "69" as it set forth at length herein.
71. Upon information and belief, Defendant officers subjected plaintiff to unreasonable search & seizure.
72. Upon information and belief, such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
73. Upon information and belief, consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

AS AND FOR A TWELTH CAUSE OF ACTION

74. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "73" as it set forth at length herein.
75. Upon information and belief, Defendants **P.O. MOHAMMED CHOUDHURY, SHIELD #951609, P.O. LUKE MCDONALD, SHIELD #950859, SGT. OMAR CASATILLO, SHIELD #929854,** and **JOHN DOES 1-6** were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

76. Upon information and belief, at all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
77. Upon information and belief, Plaintiff **GEORGE GUILTY** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
78. Upon information and belief, the Defendants **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
79. Upon information and belief, on or about May 4, 2018, the Defendants, armed police, while effectuating the seizure of the Plaintiff **GEORGE GUILTY**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned, physically harmed, mentally harmed, emotionally harmed and maliciously prosecuted without the Defendants possessing probable cause to do so.
80. Upon information and belief, the above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:
- a. Freedom from assault to his person;

- b. Freedom from battery to his person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from malicious prosecution;
 - f. Freedom from the use of excessive force during the arrest process;
 - g. Freedom from unlawful imprisonment.
81. Upon information and belief, the Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights used the fourth and fourteenth amendments of the United States Constitution.
82. Upon information and belief, the direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature and of a physical nature. He was forced to endure pain and suffering, all to his detriment.
83. Upon information and belief, consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

AS AND FOR A THIRTEENTH CAUSE OF ACTION

84. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "83" with full force and effect as though set forth at length herein. (This Cause of Action applies to the City of New York and

the defendant officers sued in their official capacity should be characterized as a “Monell” claim.)

85. Upon information and belief, Defendants **CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** have grossly failed to adequately hire, screen, train, control, discipline, adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
86. Upon information and belief, Defendants **CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** were negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable.
87. Upon information and belief, Defendants **CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** are negligent due to their failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.

2. Excessive force cannot be used against an individual who does not physically resist arrest.
 3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
88. Upon information and belief, the foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff, commit an assault/battery to his person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.
89. Upon information and belief, the gross failures of the defendants **CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** to adequately hire, screen, train, control, discipline, adequately supervise its officers have led to a widespread custom and practice in the NYPD of highly aggressive policing that results in police officers routinely violating citizens' Constitutional Amendment rights by arresting them without a warrant or probable cause, forcibly entering their residences without a search warrant or other legitimate reason, and using excessive and unreasonable force when making arrests. These practices are persistent and widespread, and amount to a defacto policy of the New York City Police Department.
90. Upon information and belief, to demonstrate this de facto policy of unconstitutional dimension, one need only look to the drastic increase over

the past few years in the number of claims brought against the City of New York and/or members of the New York City Police Department alleging unlawful police action, including false arrest, assault and battery, excessive use of force, and other civil rights violations. According to the City of New York Office of the Comptroller Claims Reports for the recent Fiscal Years, the total number of police action claims brought number in the thousands, which cost the City millions of dollars in awards and settlements. The amounts of claims have increased year by year. The statistics presented in the City of New York Office of the Comptroller Claims Reports show a pattern and practice of abuse that is widespread and consistent, and demonstrates that the Municipal Defendants are, and have been, aware that their failures to adequately hire, screen, train, control, discipline, supervise their officers in the area of search and seizure law have led to numerous instances of violations of citizens' Constitutional Amendment rights, and that they have failed, and continue to fail, to take adequate measures to rectify the problem, including sufficient training of its officers to reduce the amount of claims involving unlawful police action.

91. Upon information and belief, as these same fact patterns have come up over the past twenty-five (25) years with alarming frequency as evidenced by past notice of claims and lawsuits filed with the City of New York demonstrate a pattern by the City's police officers of continued violations of individuals similarly situated to the plaintiff. The pattern demonstrates that either a

defacto policy/custom exists to allow this behavior by failing to discipline its officers or this is a custom of its police officers who have no and/or insufficient training and/or no proper supervision and/or disciplinary penalties assessed against them for continued acting in an unconstitutional manner. This represents at least a de facto policy by the City of New York in countenancing unconstitutional behavior, by not disciplining and/or not properly supervising/training its individual police officers in the proper procedure of arresting or not arresting.

92. Upon information and belief, Defendant City of New York, acting through NYPD, had actual and/or de facto policies, practices, customs and/or usages of failing to properly train, supervise or discipline its police officers concerning correct practices in conducting investigations, the use of force, interviewing of witnesses and informants, assessment of the credibility of witnesses and informants, reasonable search of individuals and/or their properties, the seizure, voucher and/or release of seized properties, obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons and obligation to effect an arrest only when probable cause exists for such arrest.

93. Additionally, upon information and belief, Defendant City of New York, acting through the Office of the District Attorney of the County of Queens, had actual and/or de facto policies, practices, customs and/or usages of

failing to properly train, supervise, and discipline its Assistant District Attorneys and employees concerning correct practices in conducting investigations, interviewing witnesses and informants, assessing the credibility of witnesses and informants, the initiation and/or prosecution of criminal actions, obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons and the duty and/or obligation of candor toward the court.

94. Upon information and belief, Defendant City of New York, acting through aforesaid NYPD and District Attorney(s), had actual and/or de facto policies, practices, customs and/or usages of wrongfully arresting, illegally stopping, frisking, searching, seizing, abusing, humiliating, degrading and/or maliciously prosecuting individuals who are members of racial/ethnic minority groups such as plaintiff, who is black, on the pretext that they were involved in robbery, narcotics, drugs, guns and/or other illicit activities.
95. Further, upon information and belief, the existence of the aforesaid unconstitutional policies, practices, customs and/or usages may be inferred from repeated occurrences of similar wrongful conduct.
96. Upon information and belief, for example, in Jones v. City of New York, Police Officer David Rodriguez arrested the plaintiff in that matter, Javier

Jones, merely because he was allegedly informed that Mr. Jones was Jones was in the company of another individual named Frantz Machon who allegedly did display a weapon.

97. Upon information and belief, Officer Rodriguez was questioned at his deposition as to whether it is NYPD's policy to charge all members of a group with criminal possession of a weapon when only one group member is alleged to have possessed a firearm.
98. Upon information and belief, Officer Rodriguez, as the Second Circuit observed, testified that although NYPD "does not have an official policy of charging all members of a group with criminal possession of a weapon when only one group member is alleged to have possessed a firearm, [] 'That is what we do.'" Jones, 603 Fed. Appx. at 15.
99. Upon information and belief, Officer Rodriguez did further elaborate that "It is like an accomplice to the person with the firearm[]" and that "the normal procedure is when you have a situation like this, everyone gets charged with the firearm because we are going off on what the victim said . . . if the victim said that [Machon] had a firearm, that is going to be the charge for everyone."
100. Upon information and belief, as the plaintiff in Jones successfully argued before the Second Circuit, Officer Rodriguez's testimony shows that he "is unaware that he does not have probable cause to arrest a mere bystander[]" which confirms the fact that "he has not been trained on this issue by the City [and NYPD]."

101. Here, upon information and belief, as was true in Jones, the City and NYPD has failed to train defendant officers and has failed to instill in them the fact that they lack probable cause to arrest an individual such as the plaintiff.
102. Upon information and belief, in addition to the above, NYPD Police Officer Michael Carsey was recently convicted of felonies for lying under oath and falsifying information while applying for a search warrant.
103. Upon information and belief, Police Officer Carsey's supervisor, Sergeant William Eiseman, had earlier admitted to fabricating facts to justify searching vehicles and homes for cocaine, marijuana and guns, filing false information to obtain search warrants and performing illegal searches of vehicles and homes. That Sergeant Eiseman admitted to perjury and fabricating evidence against innocent persons that he falsely arrested and charged with possession of narcotics and/or illegal drugs, and also admitted to training numerous young police officers to commit similar crimes and/or offenses.
104. Upon information and belief, in addition, in or about October 2011, Detective Stephen Anderson testified against Detective Jason Arbeeney, a veteran of the NYPD. That Detective Anderson testified that, among other things, it is a common practice within the NYPD to plant narcotics and/or illegal drugs -- commonly known within the NYPD as "flaking" -- on innocent persons in order to meet arrest quotas. Detective Anderson referred to the practice of planting narcotics and/or illegal drugs on innocent persons as "attaching bodies" to the narcotics and/or illegal drugs. According to Detective

Anderson, this practice “was something I was seeing a lot of, whether it was from supervisors or undercovers and even investigators.”

105. Upon information and belief, regarding the issue of arrest quotas, Detective Anderson confirmed that the NYPD requires officers to fill quotas, and testified that even as a detective “you still have a number [of arrests] to reach while you are in the narcotics division.”
106. Recently, upon information and belief, the Defendant City of New York settled a lawsuit brought by a former employee Craig Matthews who alleged that the NYPD implemented a quota system mandating the number of arrests and summons, stop-and-frisks that police officers must conduct despite it causing unjustified stops, arrests, and summonses because police officers felt forced to abandon their discretion in order to meet their numbers. See *Matthew v. City of New York*.
107. Upon information and belief, prior to his testimony, Detective Anderson and his partner falsely claimed they purchased drugs from certain individuals who as surveillance video later confirmed did not have any sort of contact or communication with Detective Anderson and his partner during the time period that Detective Anderson and his partner claimed to have purchased the controlled substances and/or illegal drugs.
108. Upon information and belief, Detective Arbeeney was subsequently convicted of planting controlled substances and/or illegal drugs on a woman and her

boyfriend, and was convicted of the charges against him including official misconduct, offering a false instrument for filing and falsifying business records.

109. Recently, upon information and belief, the New York Supreme Court, County of Kings, Criminal Term, Gustin L. Reichbach, J., determined that the NYPD's drug unit has a system of flawed procedures that caused Detective Arbeeney's unlawful actions.
110. Upon information and belief, Judge Reichbach further determined that the NYPD's drug unit has a widespread culture of corruption and has adopted a "cowboy culture" and practice which he described as "[a]nything goes in the never-ending war on drugs." That Judge Reichbach expressed shock at what he described as "the seeming pervasive scope of misconduct [and even worse] . . . the seeming casualness by which such conduct is employed."
111. Upon information and belief, in addition to the instances of police misconduct described above, several officers of the NYPD -- including but not limited to Detective Christopher Perino, Police Officer Michael Daragjati, Police Officer Henry Tavarez, Police Officer William Masso, Detective Oscar Sandino, Detective Sean Johnstone, Sergeant Jerry Bowens, Police Officer Michael Pena, Police Officer Nicholas Mina, Detective Kevin Spellman and Police Officer Admir Kacamakovic -- have recently been convicted of various similar crimes as those described herein including but not limited to falsifying police reports, perjury, corruption, robbery, gun running, drug dealing, prostitution, theft and assault.

112. Upon information and belief, additionally, the Civilian Complaint Review Board has listed the 114th Precinct, the precinct of the subject named officers, as one of the top two precincts in Queens to rack up the most civilian complaints in 2017,.
113. Upon information and belief, Defendant City of New York maintained the above described policies, practices, customs or usages knowing fully well that the policies, practices, customs or usages lead to improper conduct by its police officers and employees. In failing to take any corrective actions, defendant City of New York acted with deliberate indifference, and its failure was a direct and proximate cause of plaintiff's injuries as described herein.
114. Upon information and belief, the actions of defendants, acting under color of State law, deprived plaintiff of his due process rights, and rights, remedies, privileges, and immunities under the laws and Constitution of the United States, treatise, ordinances, customary international law and norms, custom and usage of a right; in particular, the right to be secure in his person and property, to be free from abuse of process, the excessive use of force and the right to due process.
115. Upon information and belief, by these actions, defendants have deprived plaintiff of rights secured by treatise, ordinances, customary international law and norms, custom and usage of a right, and the Fourth, Fifth, Sixth and

Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983.

116. Upon information and belief, defendants **CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** had instituted a highly aggressive policies, including but not limited to the “Stop and Frisk” program or policy, and ever since then aggressive actions were carried out by its police officer employees, including the named defendant officers.
117. Upon information and belief, over the last decade, the number of reported annual “street stops” rose significantly. Upon information and belief, said rise is due to the policies, directives and procedures implemented or approved by the defendants **CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT**
118. Upon information and belief, as part of its Stop and Frisk Program, the City, and the NYPD, provide multiple levels of training that covered Stop and Frisk procedures. That includes, but is not limited to, a workshop on Stop and Frisk, videos about the law of reasonable suspicion, patrol guidelines, Operational memorandum and ongoing training after graduating from the Police Academy.
119. Upon information and belief, this program, hereinafter referred to as “Stop and Frisk”, disproportionately targeted minorities, males and/or youths for

stop, question and/or frisks, resulting in the excessive use of force disproportionately against minorities, and violated the constitutional rights of citizens of New York City, including citizens residing within the confines of Bronx County.

120. Upon information and belief, in the matter of David Floyd et al. v. City of New York at al. 283 FRD 153, United States District Court, Southern District of New York, Justice Scheindlin, stated that it is indisputable that the NYPD has an enormous stop and frisk program. There were millions of documented stops between 2004 and 2009. These stops were made pursuant to a policy that is designed, implemented and monitored by the NYPD administration.
121. Upon information and belief, statistical evidence further shows that pursuant to the NYPD stop and frisk policies and procedures, a great majority of civilians who were subjected to stop, question and/or frisk had not committed any crime, and that the NYPD engaged in said actions without reasonable suspicions of criminality. Furthermore, statistics show that blacks and Latinos were disproportionately targeted for stops, summons, arrests and excessive use of force.
122. Upon information and belief, it was statistically revealed that of the reported stops and frisks conducted by the NYPD between 2004 and 2009, officers' "suspicions" of criminality was wrong nearly 9 out of 10 times.

123. Upon information and belief, the City, NYPD were long aware of the racial disparity of police stop and frisks.
124. Upon information and belief, the defendants did not adopt proposals and suggestions to amend their actions, policies and guidelines, and still continued to stop, frisk, search and use force on minorities in a disproportionate manner and target their stop and frisk policies in predominately non-white precincts within the City of New York.
125. Upon information and belief, police officers routinely engage in “stops” and then attempt to justify the stop and/or frisk, when in fact the basis for the stop or stop and frisk was pretextual and/or discriminatory in nature. Upon information and belief, frisks and/or searches are conducted without justifiable reasons.
126. Upon information and belief, the Defendants, either condoned the use of stop and frisk program, or the use of force in conjunction with it, as “means to an end”, or acted with deliberate indifference to the knowledge that it was being utilized in that manner in a vast number of cases where there was no reasonable suspicion or no evidence of any criminality that would justify the use of any force, or force to the degree it was used, much less the initial stop and frisk.
127. Upon information and belief, the Defendants sought to justify the tremendous increase in the stop and frisk program by claiming that the program helped rid the City of illegal guns. Yet, that contention or rationale is not statistically borne out. Nor would it serve as justification to violate the

laws of the United States Constitution or the State of New York.

128. Upon information and belief, the Defendants acted with deliberate indifference to: statistical evidence that enforcement or application of the “Stop and Frisk” program was highly unlikely to result in an arrest, a summons or the recovery of weapons or contraband.
129. Upon information and belief, in fact, the Defendants were deliberately indifferent to statistical evidence/reports/information/complaints and other information that they possessed that indicated that: the stop and frisk program was targeting minorities, targeting minority communities or precincts; evidence that the stop and frisk program was racially biased; the program was targeting youths; officers were using force, including unnecessary or excessive force on carrying out this program; the program was being unconstitutionally applied; the training police officers received was inadequate, and that there was a need for proper training in the academy, for supplemental training in service, and for in-field supervision and training in the laws of the 4th Amendment, the legal use of force, for reasonable suspicion and general police guidelines and search and seizure laws and parameters.
130. Upon information and belief, the Defendants, acted with deliberate indifference that the aforementioned issues would, could and did result in the countless violations of constitutional rights of its citizenry.
131. Upon information and belief, prior to May 4, 2018, the City and/NYPD, failed to require that precinct commanders audit each officer worksheets,

and failed to maintain or develop a system or methodology for identifying and tracking police officers who receive a baseline number of civilian complaints related to improper stops, improper frisks or searches, unnecessary or excessive use of force, threats, illegal entry into citizen's homes and/or discourtesy.

132. Upon information and belief, the stop and frisk program especially targeted minorities.
133. Upon information and belief, the "stop and frisk" program: targeted or was applied, in a discriminatory manner against minorities; was applied or enforced in predominately minority communities.
134. Upon information and belief, the racial, gender and age disparity of the statistics could not and should not have been ignored.
135. Upon information and belief, the NYPD issued a Department Operations Order in 2002 prohibiting racial profiling. Nevertheless, upon information and belief, racial profiling continued to be utilized as a policing tool of the NYPD. Moreover, there was no Operations Order or directive prohibiting any type of gender or age bias application of policing practices in place on that date.
136. Upon information and belief, Former Police Commissioner Kelly has stated that the Stop and Frisk Program, and the "stops" thereunder, serve as a deterrent to criminal activity, which includes the criminal possession of a weapon. Therefore, he endorsed, and upon information and belief, the Current Commissioner continued, on the date of the subject incident, to

endorse said program and have it applied by the police officers under his command, although said program was being used to stop and stop and frisk citizens without reasonable suspicion, and in a racially biased manner.

137. Upon information and belief, this Stop and Frisk program was in effect on May 4, 2018 and was trained, implemented and overseen throughout the City of New York and all precincts therein, including the 114th Precinct by **P.O. MOHAMMED CHOUDHURY, SHIELD #951609, P.O. LUKE MCDONALD, SHIELD #950859, SGT. OMAR CASATILLO, SHIELD #929854, and JOHN DOES 1-6.**
138. Upon information and belief, the most common reason used by the NYPD to justify stopping civilians of New York City, almost 90% of whom had committed no crime or violation, falls predominantly within the category “furtive movements.” In 2011, that reason was given in 51.3% of the total number of stops.
139. Upon information and belief, however upon information and belief, the **City and/or NYPD** either failed to train officers what constitutes “furtive movements”, or acted with deliberate indifference to the need enhance or supplement training in the area; they acted with deliberate indifference to the unequal application of stop and frisk procedures when “furtive movements” are committed by “whites”, not resulting in “stops”, while the same movements when committed by minorities resulted in “stops”; and they acted deliberate indifference to the knowledge that “furtive movements” was not a statistically reliable marker of possession of

contraband, weapon, or that a person has committed, or is about to commit a crime. In sum, “furtive movements” has been statistically proven to be unreliable to establish reasonable suspicion to justify a stop, or a stop, question and frisk.

140. Upon information and belief, the aforementioned statistical proof shows that said reasons or rationale for said stops were inaccurate, unreliable, untrue or without statistical probability of success.
141. Upon information and belief, further evidence of the defendants’ over aggressive stop and frisk policies which targeted minority communities, such as the Wakefield section of the Bronx, can be found in the Trespass Affidavit Program, formerly known as Operation Clean Halls. In *Ligon v. City of New York*, No. 12, Civ 2274, plaintiff brought an action alleging that the NYPD’s trespass stops outside TAP buildings are often without reasonable suspicion, violating the 4th Amendment rights. Justice Scheindlin, agreed.
142. Upon information and belief, said Stop and Frisk program was established, maintained, supervised, continued, applied and monitored to meet arrest/summons, numbers/quotas and to establish and/or meet performance standards.
143. Upon information and belief, the City of New York and the NYPD established performance standards which demanded, or resulted in increased levels of stops and frisks.
144. Upon information and belief, in the Floyd case, Justice Scheindlin cited

evidence of a quota system which included a minimum number of monthly “stops.”

145. Upon information and belief, arrest quotas and summons quotas, often couched by the defendants as “performance standards”, are ingrained as a part of a NYPD officer’s job, leading to shortcuts and violations of citizen’s constitutional rights to meet those so called performance levels.
146. Upon information and belief, further evidence of a pattern, policy or custom is evidenced by recent Press Articles documenting rampant police abuse where the officers involved were not disciplined in any meaningful manner but rather promoted to a higher position.
147. Defendant City of New York maintained the above described policies, practices, customs or usages knowing fully well that the policies, practices, customs or usages lead to improper conduct by its police officers and employees. In failing to take any corrective actions, defendant City of New York acted with deliberate indifference, and its failure was a direct and proximate cause of plaintiff’s injuries as described herein.
148. The actions of defendants, acting under color of State law, deprived plaintiff of his due process rights, and rights, remedies, privileges, and immunities under the laws and Constitution of the United States, treatise, ordinances, customary international law and norms, custom and usage of a right; in particular, the right to be secure in his person and property, to be free from abuse of process, the excessive use of force and the right to due process.
149. By these actions, defendants have deprived plaintiff of rights secured by

treatise, ordinances, customary international law and norms, custom and usage of a right, and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983.

150. Upon information and belief, consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

AS AND FOR A FOURTEENTH CAUSE OF ACTION

151. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "150" with full force and effect as though set forth at length herein.
152. Upon information and belief, an overly aggressive policing policy was in effect on May 4, 2018 and was taught, implemented, and overseen throughout the City of New York and all precincts therein, including the 114th Precinct by Defendants **P.O. MOHAMMED CHOUDHURY, SHIELD #951609, P.O. LUKE MCDONALD, SHIELD #950859, SGT. OMAR CASATILLO, SHIELD #929854, and JOHN DOES 1-6.**
153. Upon information and belief, at all relevant times hereunder, the 114th Precinct was a particularly aggressive precinct in searching and/or seizing individuals without probable cause, entering and searching premises without justification or probable cause, and using excessive force during arrests.

154. Upon information and belief, Plaintiff here was unlawfully seized and arrested without probable cause when the defendant officers dragged him out of his car, without a warrant or other legitimate reason, and handcuffed him and threw against his car and later into a cell and beat him and caused injuries that required emergency surgery. This false arrest, confinement, assault and battery, and use of excessive force by the officers was the direct result of the gross failures of the **CITY OF NEW YORK** and NYPD to implement adequate training and supervision in the law of search and seizure and use of force, and the overly aggressive policing policies in effect on May 4, 2018.
155. By these actions, defendants have deprived plaintiff of rights secured by treatise, ordinances, customary international law and norms, custom and usage of a right, and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983.
156. Upon information and belief, consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

AS AND FOR A FIFTEENTH CAUSE OF ACTION

157. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs “1” through “156” with full force and effect as though set forth at length herein.
158. Upon information and belief, Defendants actions violated the laws of the

State of New York.

159. Upon information and belief, by reason of the foregoing, Plaintiff suffered physical injuries, mental injuries, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.
160. Upon information and belief, as a result of the acts and conduct complained of herein, Plaintiff has suffered and will continue to suffer, physical pain, emotional pain, suffering, permanent disability, inconvenience, injury to his reputation, loss of enjoyment of life, loss of liberty and other non-pecuniary losses. Plaintiff has further experienced severe emotional and physical distress.
161. Upon information and belief, the defendants engaged in extreme and outrageous conduct, intentionally and recklessly causing severe emotional distress to plaintiff.
162. Upon information and belief, Plaintiff's emotional distress has damaged his personal and professional life because of the severe mental pain and anguish which were inflicted through deliberate and malicious actions including the arrest, assault, detention and imprisonment by defendants.
163. Upon information and belief, consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

AS AND FOR A SIXTEENTH CAUSE OF ACTION

164. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "163" with full force and effect as though set forth at length herein.
165. By reason of the foregoing, and by arresting, detaining and imprisoning plaintiff without probable cause or reasonable suspicion, and harassing and assaulting him and depriving him of due process and equal protection of laws, defendants deprived plaintiff of rights, remedies, privileges, and immunities guaranteed to every New Yorker by Article I, § 5 (prohibiting cruel and unusual punishments), Article 1, § 6 (providing for due process), Article 1, § 8 (guaranteeing freedom of speech), Article 1, § 11 (prohibiting discrimination in civil rights and providing for equal protection of laws) & Article I, § 12 (prohibiting unreasonable searches & seizures) of the New York Constitution.
166. Upon information and belief, in addition, the individual officers conspired among themselves and conspired with other individuals to deprive plaintiff of his constitutional rights secured by Article I, §§ 5, 6, 8, 11 & 12 of the New York Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
167. The individual officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their

respective employments as officers, agents, or employees. The individual officers' acts were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers. The individual officers acted willfully, knowingly, and with the specific intent to deprive plaintiff of his constitutional rights secured by Article I, §§ 5, 6, 8, 11 & 12 of the New York Constitution.

168. Defendants, their officers, agents, servants, and employees were responsible for the deprivation of plaintiff's state constitutional rights.

169. Upon information and belief, consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION

170. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "169" with full force and effect as though set forth at length herein.

171. Upon information and belief, the conduct of the defendants, as described herein, amounted to false arrest/imprisonment.

172. Upon information and belief, consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

AS AND FOR AN EIGHTEENTH CAUSE OF ACTION

173. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "172" with full force and effect as though set forth at length herein.
174. Upon information and belief, by reason of and as a consequence of the conduct of defendant officers, plaintiff sustained bodily injuries with the accompanying pain.
175. Upon information and belief, the conduct of the defendants, as described herein, amounted to assault and battery.
176. Upon information and belief, consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

AS AND FOR A NINETEENTH CAUSE OF ACTION

177. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "176" with full force and effect as though set forth at length herein.
178. Upon information and belief, based on the false testimony of defendants, the prosecutors initiated criminal actions against the plaintiff.
179. Upon information and belief, because of the conduct of the defendants, plaintiff was maliciously prosecuted for a lengthy period of time.
180. Upon information and belief, consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be

proven at trial against each of the defendants, individually and severally.

AS AND FOR A TWENTIETH CAUSE OF ACTION

181. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "180" with full force and effect as though set forth at length herein.
182. Upon information and belief, the conduct of the defendants, as described herein, amounted to degrading, humiliating and unreasonable search and seizure, and unreasonable detention.
183. Upon information and belief, consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

AS AND FOR A TWENTY-FIRST CAUSE OF ACTION

184. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "183" with full force and effect as though set forth at length herein.
185. Upon information and belief, defendant City, through its various agencies and departments including the defendants in this action, owed a duty of care to plaintiff to prevent the physical and mental abuse sustained by plaintiff.
186. Upon information and belief, defendant City, through its various agencies and departments including the defendants in this action, owed a duty of care to plaintiff because under the same or similar circumstances a reasonable,

prudent and careful person should have anticipated that an injury to plaintiff or to those in a like situation would probably result from such conduct described herein.

187. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that defendant officers were not prudent and were potentially dangerous.
188. Upon information and belief, defendant City's negligence in hiring and retaining defendant officers proximately caused plaintiff's injuries.
189. Upon information and belief, consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

WHEREFORE, Plaintiff respectfully request that judgment be entered:

1. Awarding Plaintiff compensatory damages in a full and fair sum to be determined by a jury in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction;
2. Awarding Plaintiff punitive damages in an amount to be determined by a jury;
3. Awarding Plaintiff the costs and disbursements of this action;
4. Awarding Plaintiff reasonable attorneys' fees and
5. Granting such other and further relief as to this Court deems proper.

Dated: Brooklyn, New York
July 30, 2019

B.B.

Bryan Barenbaum, Esq.
Law Offices of Bryan Barenbaum
Attorneys for Plaintiffs
2060 Eastern Parkway
Brooklyn, New York 11207
(718) 421-1111

CERTIFICATION

STATE OF NEW YORK)

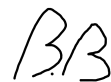
) ss.:

COUNTY OF KINGS)

Bryan Barenbaum, an Attorney duly admitted to practice in the Courts of the State of New York the undersigned, states:

I am the Attorney for the Plaintiff in the within action. I hereby certify, pursuant to 22 NYCRR 130-1.1(a), and after forming an inquiry reasonable under the circumstances, that the within Summons and Complaint and its respective contentions, are not frivolous as set forth in and defined by 22 NYCRR 130-1.1(a).

Dated: July 30, 2019



Bryan Barenbaum Esq.

VERIFICATION

STATE OF NEW YORK)

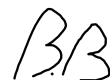
) ss.:

COUNTY OF KINGS)

I, the undersigned, being duly sworn depose and say:

I am the Attorney for the Plaintiff in the within action. I have read the foregoing **SUMMONS AND COMPLAINT** and know the contents thereof from conversations with my client and a review of medical records. The reason this verification is being made by the undersigned is because the Plaintiff resides in a County different in which this office is located. The content is true to my own knowledge, conversations and documents except as to matters therein stated to be alleged upon information and belief, and as to those matters I believe them to be true.

Dated: July 30, 2019



Bryan Barenbaum Esq.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X
GEORGE GUILTY,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, and POLICE OFFICER MOHAMMED
CHOUDHURY, POLICE OFFICER LUKE MCDONALD,
SERGEANT OMAR CASTILLO, and JOHN DOES 1-6 in
their individual and official capacities,

Defendant.

-----X

SUMMONS AND VERIFIED COMPLAINT

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